

UPSC INDIAN POLITY

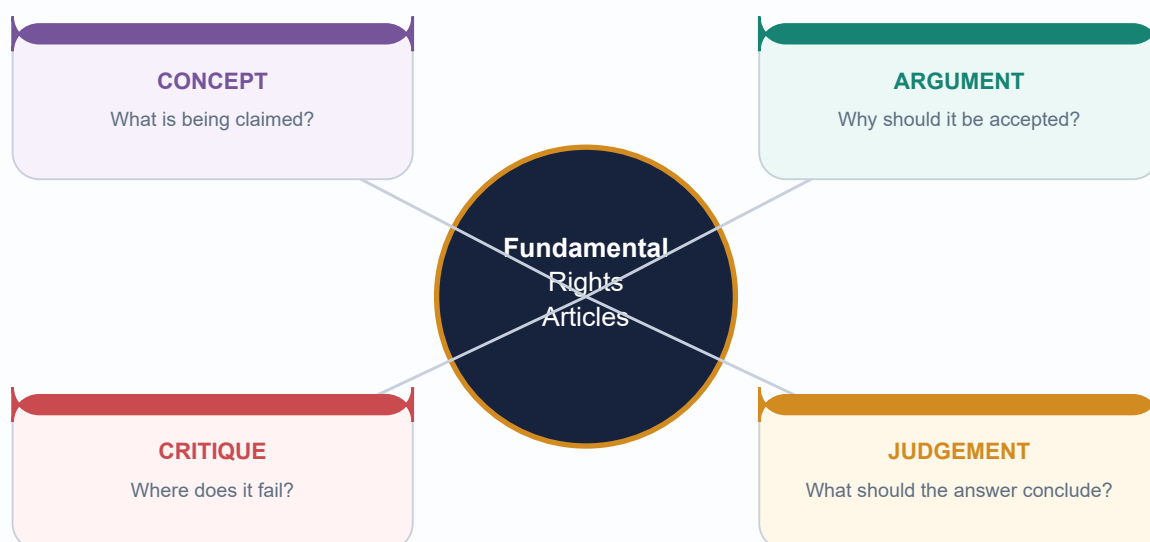
Fundamental Rights (Articles 12–35) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Fundamental-Rights.md + 07_Fundamental-Rights.md

Learning cards: 51



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation • Core Foundation

GS-II Indian Polity

INTRO & ORIGIN

greater than **Subject:** Polity • **Tier:** Basic (foundation) • **GS Paper:** GS-II

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity • Tier: Basic (foundation) • GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant (Part III, Articles 12–35)
Dimension 3 greater than □ = from source book • □□ = inference / standard knowledge	

STATIC THEORY

- greater than **Grounded in:** Indian Polity by M. Laxmikant (Part III, Articles 12–35)
- greater than □ = from source book • □□ = inference / standard knowledge

MUST-KNOW FACTS

1. greater than = from source book • □□ = inference / standard knowledge

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation • Snapshot

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Detail
Part of Constitution	□ Part III (Articles 12–35)
Nicknamed	□ "Magna Carta of India"
Borrowed from	□ USA (Bill of Rights)
Nature	□ Justiciable (courts enforce them)
Count today	□ 6 (originally 7)

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · What & Why (core idea)

GS-II Indian
Polity

INTRO & ORIGIN

□ Fundamental Rights (FRs) protect persons against unconstitutional State action, but their **beneficiaries differ**: some are citizen-only while others protect every person. They promote **political democracy**, prevent authoritarian rule, and act as **limitations on the State** — aiming at "a government of laws and not of men."

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Fundamental Rights (FRs) protect persons against unconstitutional State action, but their **beneficiaries differ**: some are citizen-only while others protect every person. They promote **political democracy**, prevent authoritarian rule, and act as **limitations on the State** — aiming at "a government of laws and not of men."

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → What & Why
(core idea)

HIGH

Foundation · The Six Fundamental Rights

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

#	Right	Articles
1	Right to Equality	□ 14–18
2	Right to Freedom	□ 19–22
3	Right against Exploitation	□ 23–24
4	Right to Freedom of Religion	□ 25–28
5	Cultural & Educational Rights	□ 29–30
6	Right to Constitutional Remedies	□ 32

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → The Six
Fundamental Rights

HIGH

Foundation • The Six Fundamental Rights

GS-II Indian
Polity

INTRO & ORIGIN

greater than □ The **7th** — Right to Property (Art 31) — was **removed by the 44th Amendment Act, 1978**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

THE SIX FUNDAMENTAL RIGHTS: RECALL MAP

The Six Fundamental Rights

Dimension 1 greater than □ The 7th — Right to Property (Art 31) — was removed by the 44th Amendment Act, 1978.	Dimension 2 greater than It is now a legal right under Article 300-A (Part XII).
Dimension 3 greater than □ Mnemonic: "E-F-E-R-C-C" → Equality, Freedom, against Exploitation, Religion,	Dimension 4 greater than Cultural/educational, Constitutional remedies.

STATIC THEORY

- greater than It is now a **legal right** under **Article 300-A** (Part XII).
- greater than □ Mnemonic: "**E-F-E-R-C-C**" → Equality, Freedom, against Exploitation, Religion,
- greater than Cultural/educational, Constitutional remedies.

MEMORY HOOK

greater than Mnemonic: "**E-F-E-R-C-C**" → Equality, Freedom, against Exploitation, Religion,

MUST-KNOW FACTS

1. greater than The **7th** — Right to Property (Art 31) — was **removed by the 44th Amendment Act, 1978**.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → The Six
 Fundamental Rights

HIGH

Foundation • Key Features (simplified)

GS-II Indian
Polity

INTRO & ORIGIN

- Some FRs apply only to **citizens**, others to **all persons** (incl. foreigners, companies).

Foundation learning layer: concepts → constitutional detail → UPSC application.

KEY FEATURES (SIMPLIFIED): RECALL MAP

Key Features (simplified)

Dimension 1 ☐ Some FRs apply only to citizens, others to all persons (incl. foreigners, companies).	Dimension 2 ☐ Not absolute — the State can impose reasonable restrictions (courts decide reasonableness).
Dimension 3 ☐ Mostly available against the State; a few also against private individuals.	Dimension 4 ☐ Justiciable — you can move the courts directly; the Supreme Court guarantees them (Art 32).

STATIC THEORY

- ☐ **Not absolute** — the State can impose **reasonable restrictions** (courts decide reasonableness).
- ☐ Mostly available against the **State**; a few also against **private individuals**.
- ☐ **Justiciable** — you can move the courts directly; the **Supreme Court** guarantees them (Art 32).
- ☐ Parliament may amend Part III only through the constitutional-amendment process and
- **cannot damage the basic structure**; ordinary law remains reviewable under Article 13.

MUST-KNOW FACTS

1. Some FRs apply only to **citizens**, others to **all persons** (incl. foreigners, companies).
2. **Not absolute** — the State can impose **reasonable restrictions** (courts decide reasonableness).
3. Mostly available against the **State**; a few also against **private individuals**.
4. **Justiciable** — you can move the courts directly; the **Supreme Court** guarantees them (Art 32).
5. Parliament may amend Part III only through the constitutional-amendment process and

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → Key Features
 (simplified)

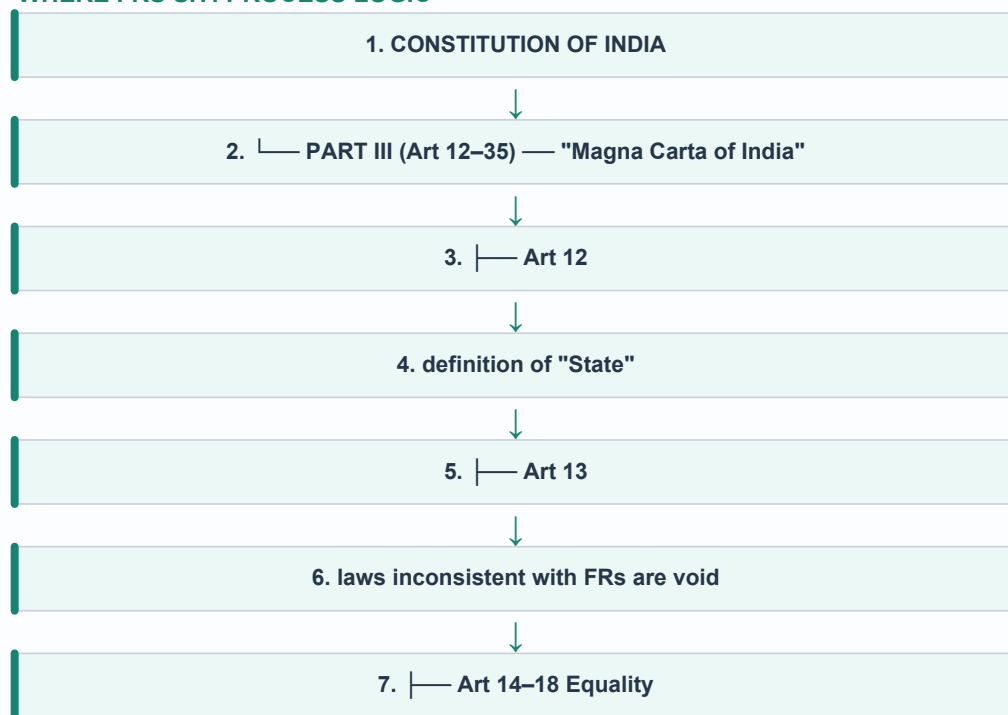
HIGH

Foundation • Visual — Where FRs sit • Visual 1

GS-II Indian
Polity

INTRO & ORIGIN

Visual-first reconstruction of the source logic.

VISUAL — WHERE FRS SIT: PROCESS LOGIC**MAINS ANGLE****STUDY LINK**

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → Visual —
 Where FRs sit

HIGH**Foundation · Visual — Where FRs sit****GS-II** Indian
Polity**INTRO & ORIGIN**

Caption: FRs are Part III; Art 32 is the enforcement engine.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → Visual —
 Where FRs sit

HIGH**Foundation · Must-Know Facts (Prelims)****GS-II** Indian
Polity**INTRO & ORIGIN**

□ FRs = Articles **12–35**, Part III.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS (PRELIMS): RECALL MAP

Must-Know Facts (Prelims)

Dimension 1 □ FRs = Articles 12–35, Part III.	Dimension 2 □ 6 FRs currently; Right to Property deleted (44th Amendment, 1978) → Art 300-A.
Dimension 3 □ Article 32 = Right to Constitutional Remedies (writs).	Dimension 4 □ The 5 writs: habeas corpus, mandamus, prohibition, certiorari, quo-warranto.

STATIC THEORY

- □ 6 FRs currently; Right to Property deleted (44th Amendment, 1978) → Art 300-A.
- □ Article 32 = Right to Constitutional Remedies (writs).
- □ The 5 writs: **habeas corpus, mandamus, prohibition, certiorari, quo-warranto**.
- □ Art 12 defines "State"; Art 13 = judicial review of laws violating FRs.
- □□ For nuances, exceptions (Art 31A/B/C, 33, 34, 35), suspension during Emergency, landmark cases, PYQs and traps — see **advanced/Fundamental-Rights.md**.

MUST-KNOW FACTS

1. FRs = Articles 12–35, Part III.
2. 6 FRs currently; Right to Property deleted (44th Amendment, 1978) → Art 300-A.
3. Article 32 = Right to Constitutional Remedies (writs).
4. The 5 writs: **habeas corpus, mandamus, prohibition, certiorari, quo-warranto**.
5. Art 12 defines "State"; Art 13 = judicial review of laws violating FRs.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → Must-Know
 Facts (Prelims)

HIGH

Advanced · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Part III (direct check of the local Sixth Revised Edition PDF).
Dimension 3 greater than □ = constitutional/book fact · □□ = analysis · □ = post-edition official/court update.	Dimension 4 greater than Companion: basic/Fundamental-Rights.md for the foundation layer.

STATIC THEORY

- greater than **Grounded in**: Indian Polity by M. Laxmikant, Part III (direct check of the local Sixth Revised Edition PDF).
- greater than □ = constitutional/book fact · □□ = analysis · □ = post-edition official/court update.
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MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → Core
 Foundation

HIGH

Advanced · Overview & the 12 features

GS-II Indian
Polity

INTRO & ORIGIN

- FRs are in **Part III (Art 12–35)**, inspired by the **US Bill of Rights**; Part III = "Magna Carta of India." Originally **7** rights; **Right to Property (Art 31) deleted by 44th Amendment, 1978** → now a legal right under **Art 300-A**. Present count = **6**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

OVERVIEW & THE 12 FEATURES: RECALL MAP

Overview & the 12 features

Dimension 1 □ FRs are in Part III (Art 12–35), inspired by the US Bill of Rights; Part III = "Magna Carta of India." Originally 7 rights; Right to Property (Art 3)	Dimension 2 The 12 characteristic features (exam hooks in brackets):
Dimension 3 □ Some citizen-only, some for all persons · 2. □ Qualified, not absolute (reasonable	Dimension 4 restrictions; courts decide) · 3. □ Mostly vs State, some vs private · 4. □ Some negative, some positive · 5. □ Justiciable · 6. □ Directly enforceabl

STATIC THEORY

- The 12 characteristic features (exam hooks in brackets):
- ☐ Some citizen-only, some for all persons · 2. ☐ Qualified, not absolute (reasonable restrictions; courts decide) · 3. ☐ Mostly vs State, some vs private · 4. ☐ Some negative, some positive · 5. ☐ Justiciable · 6. ☐ Directly enforceable by SC (Art 32) · 7. ☐ Amendable but subject to **basic structure** · 8. ☐ Suspendable in National Emergency **except Art 20 & 21** · 9. ☐ Scope limited by Art 31A/31B/31C · 10. ☐ Restrictable for armed forces (**Art 33**) · 11. ☐ Restrictable under **martial law (Art 34)** · 12. ☐ Some need enabling law — **only Parliament (Art 35)**.

MUST-KNOW FACTS

1. FRs are in **Part III (Art 12–35)**, inspired by the **US Bill of Rights**; Part III = "Magna Carta of India." Originally **7** rights; **Right to Property (Art 31) deleted by 44th Amendment, 1978** → now a legal right under **Art 300-A**. Present count = **6**.
2. Some citizen-only, some for all persons · 2. Qualified, not absolute (reasonable restrictions; courts decide) · 3. Mostly vs State, some vs private · 4. Some negative, some positive · 5. Justiciable · 6. Directly enforceable by SC (Art 32) · 7. Amendable but subject to **basic structure** · 8. Suspendable in National Emergency **except Art 20 & 21** · 9. Scope limited by Art 31A/31B/31C · 10. Restrictable for armed forces (**Art 33**) · 11. Restrictable under **martial law (Art 34)** · 12. Some need enabling law — **only Parliament (Art 35)**.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Overview & the
12 features

HIGH

Advanced · Article 12 — Definition of "State"

GS-II Indian
Polity

INTRO & ORIGIN

☐ Includes: Govt & Parliament of India; Govt & legislatures of states; **all local authorities** (municipalities, panchayats, district boards) and **other authorities** (statutory/non-statutory bodies like LIC, ONGC) within India or under Govt of India control.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Includes: Govt & Parliament of India; Govt & legislatures of states; **all local authorities** (municipalities, panchayats, district boards) and **other authorities** (statutory/non-statutory bodies like LIC, ONGC) within India or under Govt of India control.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 12 —
Definition of "State"

HIGH

Advanced · Article 13 — Laws inconsistent with FRs

GS-II Indian
Polity

INTRO & ORIGIN

□ Laws violating FRs are **void**; establishes **judicial review**. "Law" includes ordinances, orders, bye-laws, rules, regulations, notifications, custom or usage. □□ Art 13 does **not** include constitutional amendments (*Kesavananda*, 1973) — but they must not violate basic structure.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Laws violating FRs are **void**; establishes **judicial review**. "Law" includes ordinances, orders, bye-laws, rules, regulations, notifications, custom or usage. □□ Art 13 does **not** include constitutional amendments (*Kesavananda*, 1973) — but they must not violate basic structure.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 13 —
Laws inconsistent with FRs

HIGH

Advanced · RIGHT TO EQUALITY (Art 14–18)

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of RIGHT TO EQUALITY (Art 14–18).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → RIGHT TO
EQUALITY (Art 14–18)

HIGH

Advanced · Article 14 — Equality before Law & Equal Protection of Laws

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Concept	Origin	Nature	Core meaning
Equality before law	□ British	Negative	no special privileges; equal subjection to ordinary law; no one above law
Equal protection of laws	□ American	Positive	equal treatment in equal circumstances; like treated alike

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 14 —
Equality before Law & Equal Protection of
Laws

HIGH

Advanced · Article 14 — Equality before Law & Equal Protection of Laws

GS-II Indian
Polity

INTRO & ORIGIN

□ Applies to **all persons** (citizens, foreigners, legal persons). Two concepts:

Advanced learning layer: concepts → constitutional detail → UPSC application.

ARTICLE 14 — EQUALITY BEFORE LAW & EQUAL PROTECTION OF LAWS: RECALL MAP

Article 14 — Equality before Law & Equal Protection of Laws

Dimension 1 □ Applies to all persons (citizens, foreigners, legal persons). Two concepts:	Dimension 2 □ Permits reasonable classification (intelligible differentia + □□ rational nexus to object), forbids class legislation. □ Dicey's Rule of Law: 3 elem
Dimension 3 Exceptions to equality: □ Art 361 (President/Governor immunities) · Art 361-A (true reports of legislative proceedings) · Art 105 (MPs) · Art 194 (sta	

STATIC THEORY

- Permits **reasonable classification** (intelligible differentia + □□ rational nexus to object), forbids **class legislation**. □
Dicey's Rule of Law: 3 elements — only the **first two** apply to India (Constitution is the *source* of rights here). □ Rule of Law = **basic feature**.
- **Exceptions to equality**: □ Art 361 (President/Governor immunities) · Art 361-A (true reports of legislative proceedings) · Art 105 (MPs) · Art 194 (state legislators) · Art 31-C ("where 31-C comes in, Art 14 goes out") · foreign sovereigns/diplomats · **UN & agencies**.

MUST-KNOW FACTS

1. Applies to **all persons** (citizens, foreigners, legal persons). Two concepts:
2. Permits **reasonable classification** (intelligible differentia + □□ rational nexus to object), forbids **class legislation**.
Dicey's Rule of Law: 3 elements — only the **first two** apply to India (Constitution is the *source* of rights here). Rule of Law = **basic feature**.
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MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 14 —
Equality before Law & Equal Protection of
Laws

HIGH

Advanced · Article 15 — Prohibition of Discrimination

GS-II Indian
Polity

INTRO & ORIGIN

□ No discrimination against **citizens** on grounds **only** of religion, race, caste, sex, place of birth. Keywords: "**discrimination**" and "**only**." 2nd provision (shops, wells, ghats...) binds **State AND private persons**. **Four exceptions:** (a) women & children; (b) SEBC/SC/ST; (c) **93rd Amdt 2005** → 27% OBC in educational institutions (aided/unaided, **except minority**), SC upheld 2008 w/ creamy-layer exclusion; (d) **103rd Amdt 2019** → up to 10% EWS.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• **Creamy layer (OBC) — excluded:** constitutional-post holders; Group A/B officers (+PSU/bank equivalents); Colonel & above; professionals; business/trade; large landholders; **income greater than ₹8 L**. □ Ceiling history: ₹1 L (1993) → ₹2.5 L (2004) → ₹4.5 L (2008) → ₹6 L (2013) → **₹8 L (2017)**. **EWS:** family income less than ₹8 L AND not owning ≥5 acres / ≥1000 sq ft flat / ≥100 sq yd (notified) / ≥200 sq yd (other).

MUST-KNOW FACTS

1. No discrimination against **citizens** on grounds **only** of religion, race, caste, sex, place of birth. Keywords: "**discrimination**" and "**only**." 2nd provision (shops, wells, ghats...) binds **State AND private persons**. **Four exceptions:** (a) women & children; (b) SEBC/SC/ST; (c) **93rd Amdt 2005** → 27% OBC in educational institutions (aided/unaided, **except minority**), SC upheld 2008 w/ creamy-layer exclusion; (d) **103rd Amdt 2019** → up to 10% EWS.

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MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 15 —
Prohibition of Discrimination

HIGH

Advanced · Article 16 — Equality of Opportunity in Public Employment

GS-II Indian
Polity

INTRO & ORIGIN

□ Grounds barred: religion, race, caste, sex, descent, place of birth, **residence**. **Four exceptions:** (a) Parliament may fix **residence** (now only **AP & Telangana**; 1957 Act expired 1974); (b) backward-class reservation; (c) religious-institution offices; (d) **EWS 10%**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• **Mandal:** □ B.P. Mandal Commission (appointed 1979, Art 340; reported 1980) — **3743 castes, ~52%** population, recommended **27% OBC**. Implemented 1990 (V.P. Singh). **Indra Sawhney / Mandal case (1992):** (a) exclude creamy layer; (b) **no reservation in promotions** (5 yrs only); (c) total **≤ 50%** except extraordinary; (d) carry-forward valid but within 50%; (e) permanent statutory body. **Amendments overriding it:** □ **77th (1995)** promotions for SC/ST · **85th (2001)** consequential seniority (retrospective Jun 1995) · **81st (2000)** backlog as separate class · **102nd (2018)** NCBC constitutional status (**Art 338-B**). □ Tamil Nadu's **69%** put in **9th Schedule (1994)**. Scientific/technical posts (Cabinet Secretariat Order 1961) exemptable from EWS.

MUST-KNOW FACTS

1. Grounds barred: religion, race, caste, sex, descent, place of birth, **residence**. **Four exceptions:** (a) Parliament may fix **residence** (now only **AP & Telangana**; 1957 Act expired 1974); (b) backward-class reservation; (c) religious-institution offices; (d) **EWS 10%**.

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MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 16 —
Equality of Opportunity in Public Employment

HIGH**Advanced · Article 17 — Abolition of Untouchability**GS-II Indian
Polity**INTRO & ORIGIN**

□ Practice punishable; **Protection of Civil Rights Act, 1955** (renamed 1976). Term **undefined** (Mysore HC: historical caste-based practice, not literal). □ Enforceable **against private individuals**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Practice punishable; **Protection of Civil Rights Act, 1955** (renamed 1976). Term **undefined** (Mysore HC: historical caste-based practice, not literal). Enforceable **against private individuals**.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 17 —
Abolition of Untouchability

HIGH**Advanced · Article 18 — Abolition of Titles**GS-II Indian
Polity**INTRO & ORIGIN**

□ (a) State can't confer titles except **military/academic**; (b) citizens can't accept foreign titles; (c)/(d) office-holders need President's consent for foreign titles/gifts. □ **National Awards case (1996):** Bharat Ratna/Padma awards are **not "titles"**; valid but **no prefix/suffix** (else forfeited). Instituted 1954, discontinued 1977 (Morarji Desai), revived 1980 (Indira Gandhi).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. (a) State can't confer titles except **military/academic**; (b) citizens can't accept foreign titles; (c)/(d) office-holders need President's consent for foreign titles/gifts. **National Awards case (1996)**: Bharat Ratna/Padma awards are **not "titles"**; valid but **no prefix/suffix** (else forfeited). Instituted 1954, discontinued 1977 (Morarji Desai), revived 1980 (Indira Gandhi).

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 18 —
Abolition of Titles

HIGH**Advanced · RIGHT TO FREEDOM (Art 19–22)**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of RIGHT TO FREEDOM (Art 19–22).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → RIGHT TO
FREEDOM (Art 19–22)

HIGH**Advanced · Article 19 — Six Freedoms (citizens only; vs State only)**GS-II Indian
Polity**INTRO & ORIGIN**

□ (a) speech & expression · (b) assembly · (c) association/unions/**co-operative societies** · (d) movement · (e) residence · (f) profession. (Property right (g) deleted, 44th Amdt 1978.)

Advanced learning layer: concepts → constitutional detail → UPSC application.

ARTICLE 19 — SIX FREEDOMS (CITIZENS ONLY; VS STATE ONLY): RECALL MAP**Article 19 — Six Freedoms (citizens only; vs State only)**

Dimension 1 □ (a) speech & expression · (b) assembly · (c) association/unions/co-operative societies · (d) movement · (e) residence · (f) profession. (Property ri	Dimension 2 Speech & expression □ SC-read inclusions: propagate own/others' views, freedom of press, commercial ads, against phone tapping, right to telecast (no
Dimension 3 Assembly □ peaceful, unarmed, public land; not strike. Restrictions: sovereignty/integrity, public order. The book cites CrPC Sec 144 and IPC Sec 141;	

STATIC THEORY

- **Speech & expression** □ SC-read inclusions: propagate own/others' views, **freedom of press**, commercial ads, against phone tapping, right to telecast (no govt media monopoly), against bandh, **right to know**, freedom of silence, against pre-censorship, demonstration/picketing (**not strike**). Restriction grounds: sovereignty & integrity, security of state, friendly foreign relations, public order, decency/morality, contempt of court, defamation, incitement.
- **Assembly** □ peaceful, unarmed, public land; not strike. Restrictions: sovereignty/integrity, public order. The book cites CrPC **Sec 144** and IPC **Sec 141**; from **1 July 2024** the operative criminal-law references are the corresponding provisions of the **BNSS, 2023** and **BNS, 2023** (official commencement notifications), while older case law may retain the former section numbers. **Association** □ includes negative right (not to join); recognition **not** a FR; **no** guaranteed right to strike/lock-out. **Movement** □ internal only (external dimension under Art 21); restricted for public interest & ST protection. **Residence** □ reside (temporary) + settle (permanent); ST areas restricted. **Profession** □ excludes immoral/dangerous trades; State may set qualifications & run monopolies without justification.

MUST-KNOW FACTS

1. (a) speech & expression · (b) assembly · (c) association/unions/**co-operative societies** · (d) movement · (e) residence · (f) profession. (Property right (g) deleted, 44th Amdt 1978.)

2. **Speech & expression** SC-read inclusions: propagate own/others' views, **freedom of press**, commercial ads, against phone tapping, right to telecast (no govt media monopoly), against bandh, **right to know**, freedom of silence, against pre-censorship, demonstration/picketing (**not strike**). Restriction grounds: sovereignty & integrity, security of state, friendly foreign relations, public order, decency/morality, contempt of court, defamation, incitement.

3. **Assembly** peaceful, unarmed, public land; not strike. Restrictions: sovereignty/integrity, public order. The book cites CrPC **Sec 144** and IPC **Sec 141**; from **1 July 2024** the operative criminal-law references are the corresponding provisions of the **BNSS, 2023** and **BNS, 2023** (official commencement notifications), while older case law may retain the former section numbers. **Association** includes negative right (not to join); recognition **not** a FR; **no** guaranteed right to strike/lock-out. **Movement** internal only (external dimension under Art 21); restricted for public interest & ST protection. **Residence** reside (temporary) + settle (permanent); ST areas restricted. **Profession** excludes immoral/dangerous trades; State may set qualifications & run monopolies without justification.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 19 — Six
Freedoms (citizens only; vs State only)

HIGH

Advanced · Article 20 — Protection re Conviction (all persons)

GS-II Indian
Polity

INTRO & ORIGIN

- (a) **No ex-post-facto law** (criminal only; not civil/tax; bars conviction not trial; not for preventive detention); (b) **No double jeopardy** (only before court/judicial tribunal, not departmental); (c) **No self-incrimination** (oral + documentary; NOT thumb impression, specimen signature, blood, body exhibition; criminal proceedings only). **Non-suspendable in Emergency.**

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. (a) **No ex-post-facto law** (criminal only; not civil/tax; bars conviction not trial; not for preventive detention); (b) **No double jeopardy** (only before court/judicial tribunal, not departmental); (c) **No self-incrimination** (oral + documentary; NOT thumb impression, specimen signature, blood, body exhibition; criminal proceedings only). **Non-suspendable in Emergency.**

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 20 —
Protection re Conviction (all persons)

HIGH**Advanced · Article 21 — Protection of Life & Personal Liberty (all persons)**

GS-II Indian Polity

INTRO & ORIGIN

□ *Gopalan* (1950): narrow — only vs arbitrary **executive** action ("procedure established by law"). □ **Maneka Gandhi (1978)**: wide — procedure must be **fair, just, reasonable** (imports "due process"), vs executive **and** legislative action; life = live with **human dignity**. □ SC-declared Art 21 rights include: dignity, **clean environment**, livelihood, **privacy**, shelter, health, free legal aid, speedy trial, against handcuffing/solitary confinement, travel abroad, **against bonded labour**, information, reputation, sleep, against noise pollution, sustainable development (35 listed in book). **Art 20 & 21 never suspended in Emergency.**

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. *Gopalan* (1950): narrow — only vs arbitrary **executive** action ("procedure established by law"). **Maneka Gandhi (1978)**: wide — procedure must be **fair, just, reasonable** (imports "due process"), vs executive **and** legislative action; life = live with **human dignity**. SC-declared Art 21 rights include: dignity, **clean environment**, livelihood, **privacy**, shelter, health, free legal aid, speedy trial, against handcuffing/solitary confinement, travel abroad, **against bonded labour**, information, reputation, sleep, against noise pollution, sustainable development (35 listed in book). **Art 20 & 21 never suspended in Emergency.**

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 21 —
Protection of Life & Personal Liberty (all persons)

HIGH**Advanced · Article 21A — Right to Education**

GS-II Indian Polity

INTRO & ORIGIN

□ **86th Amendment (2002)** — free & compulsory education **6–14 years**. Shifted old Art 45 to early-childhood (less than 6 yrs); added FD under Art 51A. **RTE Act, 2009** operationalises it. SC (1993) had already read primary education into Art 21 (Unni Krishnan), overruling *Mohini Jain* (1992).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. 86th Amendment (2002) — free & compulsory education **6–14 years**. Shifted old Art 45 to early-childhood (less than 6 yrs); added FD under Art 51A. **RTE Act, 2009** operationalises it. SC (1993) had already read primary education into Art 21 (Unni Krishnan), overruling *Mohini Jain* (1992).

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 21A —
 Right to Education

HIGH**Advanced · Article 22 — Protection Against Arrest & Detention**GS-II Indian
Polity**INTRO & ORIGIN**

□ **Punitive** (post-trial) vs **Preventive** (without trial, precautionary).

Advanced learning layer: concepts → constitutional detail → UPSC application.

ARTICLE 22 — PROTECTION AGAINST ARREST & DETENTION: RECALL MAP**Article 22 — Protection Against Arrest & Detention**

Dimension 1 □ Punitive (post-trial) vs Preventive (without trial, precautionary).	Dimension 2 Ordinary law (Part 1): grounds of arrest; consult lawyer; produced before magistrate within
Dimension 3 24 hrs; release after 24 hrs unless extended. (Not for enemy aliens / preventive detention.)	Dimension 4 Preventive detention (Part 2): detention ≤ 3 months unless Advisory Board (HC judges)

STATIC THEORY

- **Ordinary law (Part 1):** grounds of arrest; consult lawyer; produced before magistrate **within
- 24 hrs**; release after 24 hrs unless extended. (Not for enemy aliens / preventive detention.)
- **Preventive detention (Part 2):** detention ≤ 3 months unless **Advisory Board** (HC judges)
- approves; grounds communicated (except public-interest facts); representation opportunity.
- □ **44th Amdt (1978)** sought to cut 3→2 months **but was never brought into force** — 3 months
- stands. □□ Parliament has exclusive power for preventive detention re defence/foreign affairs; concurrent with states for security/public order. Laws: MISA (repealed), NSA 1980, COFEPOSA, etc.

MUST-KNOW FACTS

1. **Punitive** (post-trial) vs **Preventive** (without trial, precautionary).
2. **44th Amdt (1978)** sought to cut 3→2 months **but was never brought into force** — 3 months

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → Article 22 —
 Protection Against Arrest & Detention

HIGH**Advanced · RIGHT AGAINST EXPLOITATION (Art 23–24)**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of RIGHT AGAINST EXPLOITATION (Art 23–24).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → RIGHT
 AGAINST EXPLOITATION (Art 23–24)

HIGH**Advanced · Article 23 — Traffic in humans & forced labour**GS-II Indian
Polity**INTRO & ORIGIN**

□ Bars trafficking, **begar**, and forced labour (incl. bonded labour, devadasis, slavery); against State **and** private persons; all persons. "Force" includes **economic compulsion** (below minimum wage). Laws: Immoral Traffic (Prevention) Act 1956, Bonded Labour System (Abolition) Act 1976, Minimum Wages Act 1948. **Exception:** State may impose **compulsory service** for public purposes (e.g. military/social service) — no religion/race/caste/class discrimination.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Bars trafficking, **begar**, and forced labour (incl. bonded labour, devadasis, slavery); against State **and** private persons; all persons. "Force" includes **economic compulsion** (below minimum wage). Laws: Immoral Traffic (Prevention) Act 1956, Bonded Labour System (Abolition) Act 1976, Minimum Wages Act 1948. **Exception:** State may impose **compulsory service** for public purposes (e.g. military/social service) — no religion/race/caste/class discrimination.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → Article 23 —
 Traffic in humans & forced labour

HIGH

Advanced · Article 24 — Child labour

GS-II Indian
Polity

INTRO & ORIGIN

□ Bars employment of children **below 14** in factory, mine, or hazardous work (not harmless work). Laws: Child Labour (Prohibition & Regulation) Act 1986 (renamed **Child and Adolescent Labour...** by 2016 Amdt); Commissions for Protection of Child Rights Act 2005. SC (1996): ₹20,000 fine per child → Child Labour Rehabilitation Welfare Fund.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Bars employment of children **below 14** in factory, mine, or hazardous work (not harmless work). Laws: Child Labour (Prohibition & Regulation) Act 1986 (renamed **Child and Adolescent Labour...** by 2016 Amdt); Commissions for Protection of Child Rights Act 2005. SC (1996): ₹20,000 fine per child → Child Labour Rehabilitation Welfare Fund.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 24 —
Child labour

HIGH

Advanced · RIGHT TO FREEDOM OF RELIGION (Art 25–28)

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of RIGHT TO FREEDOM OF RELIGION (Art 25–28).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → RIGHT TO
FREEDOM OF RELIGION (Art 25–28)

HIGH

Advanced · Article 25 — Conscience & profession/practice/propagation (all persons)

GS-II Indian
Polity

INTRO & ORIGIN

□ Freedom of **conscience** + right to **profess, practice, propagate**. Propagation ≠ right to **convert** (forcible conversion violates others' conscience). Subject to public order, morality, health, other FRs. State may regulate secular activity & throw open Hindu institutions. Explanations: **kirpans** included for Sikhs; "Hindus" include **Sikhs, Jains, Buddhists**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Freedom of **conscience** + right to **profess, practice, propagate**. Propagation ≠ right to **convert** (forcible conversion violates others' conscience). Subject to public order, morality, health, other FRs. State may regulate secular activity & throw open Hindu institutions. Explanations: **kirpans** included for Sikhs; "Hindus" include **Sikhs, Jains, Buddhists**.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 25 —
Conscience & profession/practice/propagation
(all persons)

HIGH**Advanced · Article 26 — Manage religious affairs (denominations)**GS-II Indian
Polity**INTRO & ORIGIN**

□ Rights: establish/maintain institutions; manage religious matters; own & administer property. Subject to public order/morality/health (**not** other FRs). Denomination test (SC): common belief system + common organisation + distinctive name. □ Ramakrishna Mission & Ananda Marga = denominations (within Hindu religion); Aurobindo Society = **not** a religious denomination.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Rights: establish/maintain institutions; manage religious matters; own & administer property. Subject to public order/morality/health (**not** other FRs). Denomination test (SC): common belief system + common organisation + distinctive name. Ramakrishna Mission & Ananda Marga = denominations (within Hindu religion); Aurobindo Society = **not** a religious denomination.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 26 —
Manage religious affairs (denominations)

HIGH**Advanced · Article 27 — No tax for promotion of religion**GS-II Indian
Polity**INTRO & ORIGIN**

□ Bars **taxes** (not **fees**) for promoting/maintaining a particular religion. Fees for regulating secular administration or pilgrim services are allowed.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Bars **taxes** (not **fees**) for promoting/maintaining a particular religion. Fees for regulating secular administration or pilgrim services are allowed.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 27 — No
tax for promotion of religion

HIGH**Advanced · Article 28 — Religious instruction in institutions**GS-II Indian
Polity**INTRO & ORIGIN**

□ Four types: (a) wholly State-maintained → instruction **prohibited**; (b) State-administered but trust-established → **permitted**; (c) State-recognised & (d) State-aided → permitted **voluntarily** (with consent).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Four types: (a) wholly State-maintained → instruction **prohibited**; (b) State-administered but trust-established → **permitted**; (c) State-recognised & (d) State-aided → permitted **voluntarily** (with consent).

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 28 —
Religious instruction in institutions

HIGH**Advanced · CULTURAL & EDUCATIONAL RIGHTS (Art 29–30)**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of CULTURAL & EDUCATIONAL RIGHTS (Art 29–30).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → CULTURAL &
EDUCATIONAL RIGHTS (Art 29–30)

HIGH

Advanced · Article 29 — Protection of minorities' interests

GS-II Indian Polity

INTRO & ORIGIN

□ Any **section of citizens** with distinct language/script/culture may conserve it; no denial of admission to State/State-aided institutions on grounds only of religion/race/caste/language. □ SC: scope not limited to minorities ("section of citizens" = minority **or** majority).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Any **section of citizens** with distinct language/script/culture may conserve it; no denial of admission to State/State-aided institutions on grounds only of religion/race/caste/language. SC: scope not limited to minorities ("section of citizens" = minority **or** majority).

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 29 —
Protection of minorities' interests

HIGH

Advanced · Article 30 — Minorities' right to establish/administer institutions

GS-II Indian Polity

INTRO & ORIGIN

□ Only for **minorities** (religious/linguistic); "minority" **undefined**. Rights: establish & administer; fair compensation on acquisition (44th Amdt); no discrimination in aid. Three types (recognition+aid / recognition only / neither). □ *Malankara Syrian Catholic College* (2007): right includes choosing governing body, staff, students, fees — but **no right to maladminister**; regulatory measures for standards valid; aid doesn't change minority character.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Only for **minorities** (religious/linguistic); "minority" **undefined**. Rights: establish & administer; fair compensation on acquisition (44th Amdt); no discrimination in aid. Three types (recognition+aid / recognition only / neither). *Malankara Syrian Catholic College* (2007): right includes choosing governing body, staff, students, fees — but **no right to maladminister**; regulatory measures for standards valid; aid doesn't change minority character.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Article 30 —
Minorities' right to establish/administer
institutions

HIGH

Advanced · RIGHT TO CONSTITUTIONAL REMEDIES (Art 32) + WRITS

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Writ	Meaning	Key scope
□ Habeas Corpus	"have the body"	vs public and private; not if lawful/contempt/competent-court/outside-jurisdiction
□ Mandamus	"we command"	vs public official/body; not vs private, discretionary duty, contract, President/Governor, HC CJ (judicial)
□ Prohibition	"to forbid"	higher→lower court, preventive ; only judicial/quasi-judicial; not admin/legislative/private
□ Certiorari	"to be certified"	transfer/quash; preventive + curative ; since 1991 also vs administrative authorities
□ Quo-Warranto	"by what authority"	legality of public-office claim; only substantive statutory/constitutional office; any interested person may seek

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → RIGHT TO
CONSTITUTIONAL REMEDIES (Art 32) +
WRITS

HIGH

Advanced · RIGHT TO CONSTITUTIONAL REMEDIES (Art 32) + WRITS

GS-II Indian
Polity

INTRO & ORIGIN

□ Art 32 = "**heart and soul**" of the Constitution (Ambedkar); a **basic feature** (not amendable away). Four provisions: (a) right to move SC; (b) SC issues writs; (c) Parliament may empower other courts; (d) suspendable only per Constitution (**Art 359** during Emergency). □ SC jurisdiction here is **original but not exclusive** (concurrent with HC under **Art 226**). Only **FR violations** enforceable under Art 32.

Advanced learning layer: concepts → constitutional detail → UPSC application.

RIGHT TO CONSTITUTIONAL REMEDIES (ART 32) + WRITS: RECALL MAP

RIGHT TO CONSTITUTIONAL REMEDIES (Art 32) + WRITS

Dimension 1 □ Art 32 = "heart and soul" of the Constitution (Ambedkar); a basic feature (not amendable away). Four provisions: (a) right to move SC; (b) SC issues	Dimension 2 SC (Art 32) vs HC (Art 226) writ jurisdiction:
Dimension 3 □ SC: FRs only; HC: FRs + any other purpose (ordinary legal right) → HC wider here.	Dimension 4 □ SC: throughout India; HC: within territorial jurisdiction / where cause of action arises.

STATIC THEORY

- **SC (Art 32) vs HC (Art 226) writ jurisdiction:**
- □ SC: FRs only; HC: FRs + **any other purpose** (ordinary legal right) → HC wider here.
- □ SC: throughout India; HC: within territorial jurisdiction / where cause of action arises.
- □ Art 32 remedy is itself a FR → SC **cannot refuse**; Art 226 is **discretionary**.
- **The five writs (borrowed from English "prerogative writs"):**

MUST-KNOW FACTS

1. Art 32 = "**heart and soul**" of the Constitution (Ambedkar); a **basic feature** (not amendable away). Four provisions: (a) right to move SC; (b) SC issues writs; (c) Parliament may empower other courts; (d) suspendable only per Constitution (**Art 359** during Emergency). SC jurisdiction here is **original but not exclusive** (concurrent with HC under **Art 226**). Only **FR violations** enforceable under Art 32.
2. SC: FRs only; HC: FRs + **any other purpose** (ordinary legal right) → HC wider here.
3. SC: throughout India; HC: within territorial jurisdiction / where cause of action arises.
4. Art 32 remedy is itself a FR → SC **cannot refuse**; Art 226 is **discretionary**.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → RIGHT TO
CONSTITUTIONAL REMEDIES (Art 32) +
WRITS

HIGH

Advanced · Art 33 (Armed Forces), Art 34 (Martial Law), Art 35 (Enabling laws)

GS-II Indian
Polity

INTRO & ORIGIN

□ **Art 33: Parliament** (not states) may restrict/abrogate FRs of armed/para-military/police/ intelligence forces (Army/Navy/Air Force Acts 1950, Police Forces (Restriction of Rights) Act 1966); can exclude court martial from writ jurisdiction. Covers non-combatants (cooks, barbers...). □ **Art 34:** restricts FRs under **martial law**; Parliament may **indemnify** acts / validate sentences. Martial law = "military rule" (undefined; from English common law); no express provision (implicit in Art 34). □ SC: martial law does **not** ipso facto suspend habeas corpus. □ **Art 35:** only **Parliament** legislates on specified FRs → ensures pan-India uniformity.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Art 33: Parliament (not states) may restrict/abrogate FRs of armed/para-military/police/ intelligence forces (Army/Navy/Air Force Acts 1950, Police Forces (Restriction of Rights) Act 1966); can exclude court martial from writ jurisdiction. Covers non-combatants (cooks, barbers...). **Art 34:** restricts FRs under **martial law**; Parliament may **indemnify** acts / validate sentences. Martial law = "military rule" (undefined; from English common law); no express provision (implicit in Art 34). SC: martial law does **not** ipso facto suspend habeas corpus. **Art 35:** only **Parliament** legislates on specified FRs → ensures pan-India uniformity.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Art 33 (Armed Forces), Art 34 (Martial Law), Art 35 (Enabling laws)

HIGH**Advanced · Martial Law vs National Emergency (Table 7.3)**

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

	Martial Law	National Emergency
Affects	☐ Only FRs	FRs + Centre-state relations, revenue, legislative powers, Parliament tenure
Govt/courts	☐ Suspends govt & ordinary courts	Continues them
Cause	Breakdown of law & order (any reason)	Only war, external aggression, armed rebellion
Area	Specific area	Whole country or part
Constitution	Implicit (no express provision)	Explicit, detailed

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Martial Law vs National Emergency (Table 7.3)

HIGH**Advanced · ☐ Landmark FR Judgments (PYQ)**

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Case	Year	Article(s)	Holding
□ *Maneka Gandhi v. Union of India*	1978	Arts 14, 19, 21	Art 21 procedure must be just, fair and reasonable; "golden triangle" links equality, freedoms and liberty.
□ *Indian Young Lawyers Association* (Sabarimala)	2018	Arts 14, 25, 26	Exclusion of women was tested against equality, essential religious practice and constitutional morality.
□ *Shreya Singhal v. Union of India*	2015	Art 19(1)(a), 19(2)	Struck down Sec 66A, IT Act as vague/overbroad and outside reasonable speech restrictions.
□ *Navtej Singh Johar v. Union of India*	2018	Arts 14, 15, 21	Read down Sec 377 IPC for consensual adult same-sex relations; dignity/autonomy protected.
□ *Vishaka v. State of Rajasthan*	1997	Arts 14, 19(1)(g), 21	Laid workplace sexual-harassment guidelines until legislation; dignity and safe work linked to FRs.
□ *Property Owners Association v. State of Maharashtra*	2024	Arts 31C, 39(b)	Confirmed that the unamended Art 31C survives for laws genuinely implementing Art 39(b)/(c); some private resources may qualify under Art 39(b), but not every privately owned asset does.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
 ADVANCED / COMPLETE → □ Landmark FR
 Judgments (PYQ)

HIGH

Advanced • □ Landmark FR Judgments (PYQ)

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of □ Landmark FR Judgments (PYQ).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

greater than □ Grounded in M. Laxmikant Indian Polity + □□ standard + □ verified. Added to close a UPSC gap. □ Laxmikant anchors FR adjudication in Art 13 judicial review and the Supreme Court/High Court writ framework under Arts 32/226. □ These cases expand FRs through dignity, equality, speech, privacy/autonomy and workplace safety rather than creating new textual Articles. □□ UPSC usually tests the **Article + holding** pair, not long facts. greater than □ Trap: Do not call these DPSP cases — each is an enforceable Fundamental Rights expansion/interpretation.

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → □ Landmark FR Judgments (PYQ)

HIGH**Advanced • □ Doctrine of Eclipse (Art 13)**

GS-II Indian Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Pre-Constitution law	Post-Constitution law
Effect of FR conflict	Dormant/eclipsed to inconsistency	Void to inconsistency
Revival	Possible if FR shadow removed	Not automatic

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → □ Doctrine of Eclipse (Art 13)

HIGH**Advanced • □ Doctrine of Eclipse (Art 13)**

GS-II Indian Polity

INTRO & ORIGIN

greater than □ Grounded in M. Laxmikant Indian Polity + □□ standard + □ verified. Added to close a UPSC gap.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ **DOCTRINE OF ECLIPSE (ART 13): RECALL MAP**□ **Doctrine of Eclipse (Art 13)**

Dimension 1 greater than □ Grounded in M. Laxmikant Indian Polity + □□ standard + □ verified. Added to close a UPSC gap.	Dimension 2 □ Art 13 makes pre-Constitution laws void to the extent of inconsistency with Fundamental Rights.
Dimension 3 □ Under Bhikaji Narain Dhakras (1955), an inconsistent pre-Constitution law is not dead; it is dormant/eclipsed.	Dimension 4 □□ If the relevant FR restriction is removed/amended, the eclipse disappears and the old law can revive without fresh enactment.

STATIC THEORY

- ☐ Art 13 makes pre-Constitution laws void **to the extent of inconsistency** with Fundamental Rights.
- ☐ Under *Bhikaji Narain Dhakras* (1955), an inconsistent pre-Constitution law is not dead; it is dormant/eclipsed.
- ☐ If the relevant FR restriction is removed/amended, the eclipse disappears and the old law can revive without fresh enactment.
- ☐ Post-Constitution laws violating FRs are generally void ab initio; revival logic is mainly for pre-Constitution laws.
- greater than ☐ Trap: Eclipse means "temporarily unenforceable", not "repealed".

MEMORY HOOK

greater than Trap: Eclipse means "temporarily unenforceable", not "repealed".

MUST-KNOW FACTS

1. greater than Grounded in M. Laxmikant *Indian Polity* + ☐ standard + ☐ verified. Added to close a UPSC gap.
2. Art 13 makes pre-Constitution laws void **to the extent of inconsistency** with Fundamental Rights.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → ☐ Doctrine of
Eclipse (Art 13)

HIGH**Advanced • ☐ Places of Worship Act, 1991**GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

Provision	UPSC takeaway
Sec 3	Bars conversion of place of worship from one religious denomination/section to another.
Sec 4	Maintains religious character as on 15 Aug 1947; pending suits abate subject to exceptions.
Sec 5	Ayodhya dispute exempt.

MAINS ANGLE**STUDY LINK**

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → ☐ Places of
Worship Act, 1991

HIGH

Advanced • ☐ Places of Worship Act, 1991GS-II Indian
Polity

INTRO & ORIGIN

greater than ☐ Grounded in M. Laxmikant *Indian Polity* + ☐ ☐ standard + ☐ verified. Added to close a UPSC gap.

Advanced learning layer: concepts → constitutional detail → UPSC application.

☐ PLACES OF WORSHIP ACT, 1991: RECALL MAP☐ Places of Worship Act, 1991

Dimension 1

greater than ☐ Grounded in M. Laxmikant *Indian Polity* + ☐ ☐ standard + ☐ verified. Added to close a UPSC gap.

Dimension 2

☐ The Act freezes the religious character of every place of worship as it existed on 15 August 1947.

Dimension 3

☐ Sec 5 excludes the Ayodhya Ram Janmabhoomi-Babri Masjid dispute from the Act's operation.

Dimension 4

☐ ☐ It operationalises secularism by discouraging historical-religious title disputes from becoming present-day litigation.

STATIC THEORY

- ☐ The Act freezes the religious character of every place of worship as it existed on **15 August 1947**.
- ☐ Sec 5 excludes the Ayodhya Ram Janmabhoomi-Babri Masjid dispute from the Act's operation.
- ☐ ☐ It operationalises secularism by discouraging historical-religious title disputes from becoming present-day litigation.
- ☐ **Status checked 21 Jul 2026:** constitutional challenges remain pending before the
- Supreme Court; no final judgment striking down the Act was located on the Court's official portal.
- greater than ☐ Trap: Ayodhya is an express statutory exception; do not generalise the 2019 Ayodhya outcome to other sites.

MEMORY HOOK

greater than Trap: Ayodhya is an express statutory exception; do not generalise the 2019 Ayodhya outcome to other sites.

MUST-KNOW FACTS

1. greater than Grounded in M. Laxmikant *Indian Polity* + ☐ ☐ standard + ☐ verified. Added to close a UPSC gap.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → ☐ Places of
Worship Act, 1991

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

are citizen-only.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• Association* (5 Nov 2024) requires a context-specific Art 39(b) inquiry.

UPSC TRAPS

WRONG: Art 14/20/21/23/24/25 are citizen-only

CORRECT: they apply to **all persons**; **Art 15,16,19,29,30**

WRONG: All three Dicey elements apply to India

CORRECT: only **first two**.

WRONG: Art 19 protects external movement/travel abroad

CORRECT: that's **Art 21**.

WRONG: Right to propagate includes conversion

CORRECT: **no**.

WRONG: Art 27 bars fees

CORRECT: bars only **taxes**, not fees.

WRONG: Certiorari only vs judicial bodies

CORRECT: since **1991** also vs administrative authorities.

WRONG: All FRs suspended in Emergency

CORRECT: **Art 20 & 21 never**; Art 19 only in external emergency.

MAINS ANGLE

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced • PYQ / CA anchors

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of PYQ / CA anchors.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Use the verified PYQ applications embedded below and in the owning Polity topic files (Art 21, writs, Art 15/16 exceptions, creamy layer and Art 20 protections recur frequently). □ *Live-search (web tool):* privacy (Puttaswamy) follow-ups, SC/ST sub-classification & creamy layer in promotions, EWS verdict, preventive-detention (NSA/UAPA) rulings, free-speech cases.

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → PYQ / CA
anchors

HIGH**Advanced · Mains angles**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Judicial expansion of Art 21 — from Gopalan to Maneka to Puttaswamy; "due process" through the back door. Reservation jurisprudence: 50% ceiling, creamy layer, caste → economic criteria (EWS).

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Mains angles

HIGH**Advanced · Verified PYQ application**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Verified PYQ application.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ **2024 GS-II Q12 (15 marks, 250 words):** "Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to DNA testing of child in the womb to establish its paternity." Route: Puttaswamy privacy/dignity/autonomy -greater than legality, legitimate aim, proportionality -greater than Evidence Act legitimacy presumption and best interests of the child -greater than DNA testing only on strong prima facie need, not a routine roving inquiry. Freedom of speech vs reasonable restrictions in the digital age. Preventive detention vs personal liberty — balancing security and Art 22 safeguards.

STUDY LINK

Fundamental Rights (Articles 12–35) —
ADVANCED / COMPLETE → Verified PYQ
application

End of Register Notes — UPSC Agent / Copilot CLI